

The Pink Paisley Exclusive Use Rights

Subject to the provisions of Section 2, and provided that: (a) this Lease has not been terminated; (b) Lessee is not in default of this Lease beyond applicable notice and cure periods; (c) Lessee opens to the public at the Premises for the permitted Use, Lessor agrees that it shall not voluntarily enter into any lease agreement giving a third party the right to operate in the Boulevard Shopping Center Property, a business whose primary business would be a retail gift store selling items which are the same or similar to that of The Pink Paisley and which includes the sale of clothing, gifts, accessories, home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry.

The prohibition against primarily engaging as a retail gift store selling items which are the same or similar to that of The Pink Paisley and which includes the sale of clothing, gifts, accessories, home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry shall not apply to: (a) any Lessee or successor to Lessee whose lease, including any renewal or extension, is in effect prior to the Effective Date; (b) any business who manufactures goods and which monograms or personalizes said goods; (c) any business whose primary use is that of a high end jewelry store.

Should any other Lessee or occupant at the Shopping Center violate the exclusive use rights granted to Lessee by this Section, Lessor shall take all reasonable and prudent actions necessary or desirable to be taken to cause the offending Lessee or occupant to cease its violation. Should, within a reasonable time after Lessee has given Lessor notice of an alleged breach thereof by such other Lessee or occupant, Lessor fail to proceed as provided in the previous sentence, Lessee, as its sole remedy, may proceed against that Lessee or occupant, in its own name, and at its own expense, to obtain injunctive relief against the offending Lessee and/or to obtain monetary damages from the offending Lessee or occupant, unless Lessor has failed to include Lessee's exclusive in the offending Lessee's lease, in which case Lessee may proceed against Lessor. Lessor agrees to cooperate with Lessee in any such action, but Lessee shall reimburse Lessor for any out-of-pocket expense incurred by Lessor in so doing.